

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Magistrate Judge Michael E. Hegarty

Civil Action No: 1:14-cv-00348-MEH
Courtroom Deputy: Molly Davenport

Date: August 22, 2016
FTR: Courtroom A 501

Parties:

FREDERICK CHARLES DENEFFE

Plaintiff,

v.

SKYWEST AIRLINES, INC.

Defendant.

Counsel:

Michael Lee Vogelsang
Robert Oswald

Vance Knapp
Erica Herrera
Richard Bednarski
Todd Emerson

**COURTROOM MINUTES/MINUTE ORDER
JURY TRIAL – DAY 1**

8:46 a.m. COURT IN SESSION

Court calls case. Appearance of counsel.

Jury not present.

Court addresses preliminary matters with counsel.

ORDERED: The plaintiff and defendant requested and Order of Sequestration for the witnesses, GRANTED.

Plaintiff's counsel requested to use document #33 in his opening statement, DENIED.

Plaintiff's counsel requested to use document #71 in his opening statement, DENIED.

9:38 a.m. Jury brought in.

Court makes preliminary statements to the jury.

Jurors sworn for voir dire.

Thirteen jurors called to the jury box.

Voir Dire by the Court.

10:38 a.m. Voir dire by Mr. Oswald

10:56 a.m.. Voir dire by Mr. Bednarski

11:14 a.m. Bench conference with counsel

11:17 a.m. Bench conference with counsel and juror 100326927

Jurors excused for cause: 100312935
100286267
100326927

Plaintiff's challenges: 100310563
100291901
100321296

Defendant's challenges: 100291242
100307659
100306370

Seven jurors were sworn to try the case: 100317254
100206414
100206083
100305815
100323402
100291549
100325824

11:36 a.m. Jury sworn

11:43 a.m. RECESS (2:57)

12:01 p.m. COURT IN SESSION

Jury present.

12:04 p.m. Instructions to jury

12:17 p.m. Opening statements by Mr. Oswald

12:49 p.m. Opening statements by Vance Knapp

1:14 p.m. RECESS (1:13)

2:31 p.m. COURT IN SESSION

The plaintiffs' motion to admit previously stipulated exhibits used during the opening statement 3, 5, 6, 10, 11, 17, 27, & 48, is GRANTED.

Plaintiff's witness, Robert Graser, sworn.

2:38 p.m. Direct examination of Robert Graser by Mr. Oswald.

Plaintiff's Exhibit 41 is admitted.
Plaintiff's Exhibit 24 is admitted.

2:31 p.m. RECESS (1:15)

3:54 p.m. COURT IN SESSION

Jury present

3:58 p.m. Continued direct examination of Robert Graser by Mr. Oswald.

Plaintiff's Exhibit 39 is admitted.
Plaintiff's Exhibit 49 is admitted.
Plaintiff's Exhibit 51 is admitted.

4:39 p.m. Direct examination of Robert Graser by Vance Knapp.

Defendant's Exhibit G is admitted.
Defendant's Exhibit H is admitted.
Defendant's Exhibit I is admitted.

5:02 p.m. Jury Excused – court will open tomorrow at 8:45 a.m.

5:03 p.m. RECESS (1:09)

Total In-Court Time: 6 hours, 34 minutes

*To obtain a transcript of this proceeding, please contact Stevens-Koenig Reporting at (303) 988-8470.